

Sri. Raghupathi vs Smt. Anitha on 5 June, 2018

Author: Mohammad Nawaz

Bench: Mohammad Nawaz

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MFA No.2348/2017

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 5TH DAY OF JUNE 2018

PRESENT

THE HON'BLE MR. JUSTICE H.G.RAMESH

AND

THE HON'BLE MR. JUSTICE MOHAMMAD NAWAZ

MISCELLANEOUS FIRST APPEAL NO.2348/2017 (MC)

BETWEEN:

SRI RAGHUPATHI

AGED ABOUT 43 YEARS,

R/AT YARAMREDDIGARIPALLAI

MULAKALACHERUVU MANDALAM

THAMBALAPALLI TALUK

CHITTOR DISTRICT

ANDHRA PRADESH-517418

...APPELLANT

(BY SRI S VISWESWARAIAH, ADVOCATE)

AND:

1. SMT. ANITHA

AGED ABOUT 28 YEARS

D/O SHANKARAPPA

2. MASTER BABU,

AGED ABOUT 2 YEAR 8 MONTHS

S/O SMT. ANITHA

REP. BY HIS MOTHER &

NATURAL GUARDIAN SMT. ANITHA

BOTH ARE R/AT AVAGANAPALLI VILLAGE

RAYALPAD HOBLI, SRINIVASAPUR TALUK

KOLAR DISTRICT-563134

...RESPONDENTS

THIS MISCELLANEOUS FIRST APPEAL IS FILED UNDER SECTION 28(1) OF HINDU MARRIAGE ACT, PRAYING TO SET ASIDE THE JUDGMENT AND DECREE DATED 14.12.2016 PASSED IN MC NO.21/2015 ON THE FILE OF THE PRINCIPAL SENIOR CIVIL JUDGE, KOLAR.

THIS MISCELLANEOUS FIRST APPEAL COMING ON FOR ADMISSION, THIS DAY, H.G.RAMESH J., DELIVERED THE

FOLLOWING :

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MFA No.2348/2017

JUDGMENT

H.G.RAMESH, J. (Oral):

1. This appeal is by the husband and is directed against the order dated 14.12.2016 passed by the Court of the Principal Senior Civil Judge at Kolar in MC No.21/2015.

Operative portion of the order reads as follows:

"The petition presented by the petitioners U/s. 11 and 16(3) of the Hindu Marriage Act, 1955 stands hereby partly allowed.

It is hereby declared that the marriage which was solemnized between the 1st petitioner and respondent vide marriage register certificate dt. 12-05-2003 is hereby declared as null and void consequently the said marriage stands dissolved. Further, the 2nd petitioner is extended protection U/s. 16(3) of the Hindu Marriage Act, 1955.

So far as the prayer of the 1st petitioner to declare the marriage between her and respondent as void on account of her minority and prayer to grant her compensation stands hereby rejected.

Considering the relationship between both parties, I deem it proper not to pass any order in respect of awarding costs.

I call of the office to draw the decree/award accordingly."

2. It is not disputed by the learned counsel for the appellant that the appellant's first marriage with one Smt. Radhamma was not dissolved when the appellant married the respondent. This is also stated by the appellant before the trial Court. In view of the above, the dissolution of the marriage ordered by the trial Court is in accordance with Section 11 read with Section 5(i) of the Hindu Marriage Act, 1955 ('the Act'). In this context, it is relevant to refer to Sections 11 and 5(i) of the Act; they read as follows:

"11. Void Marriages.--Any marriage solemnized after the commencement of this Act shall be null and void and may, on a petition presented by either party thereto, against the other party be so declared by a decree of nullity if it contravenes any one of the conditions specified in clauses (i), (iv) and (v) of Section 5.

5. Conditions for a Hindu Marriage.--A marriage may be solemnized between any two Hindus, if the following conditions are fulfilled, namely.--

(i) neither party has a spouse living at the time of marriage;

(ii)

(a)

(b)

(c)"

3. As stated above, the order is in conformity with Section 11 read with Section 5(i) of the Act. Hence, we decline to admit the appeal. The appeal is accordingly dismissed as being devoid of merit. In view of dismissal of the appeal, I.A.No.1/2017 filed for interim stay is also dismissed.

Appeal dismissed.

Sd/-

JUDGE Sd/-

JUDGE snc